

SENATE No. 910

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to association health plans.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 910

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 910) of Bruce E. Tarr for legislation relative to association health plans. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 805 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to association health plans.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary and to the maximum extent
2 allowed by federal law a Multiple Employer Welfare Arrangement or Association Health Plan
3 shall be allowed to operate in the Commonwealth, provided that it meets the following
4 requirements:

5 1. The arrangement shall at all times be in compliance with federal law and regulation,
6 including but not limited to the US Department of Labor's regulations regarding Association
7 Health Plans.

8 2. The arrangement's governing documents shall require the arrangement to be
9 actuarially sound, and the arrangement shall in fact be actuarially sound.

- 10 3. The arrangement shall be conducted in accordance with Massachusetts General Laws
- 11 Chapter 266 section 30 and Massachusetts General Laws Chapter 93A.